

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

16. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

Plaintiff/Cross-Defendant's Demurrer to Defendants/Cross-Complainants' Cross-Complaint

Plaintiff/Cross-Defendant Brian LeGrand demurs to defendants/cross-complainants amended cross-complaint filed on December 5, 2025. Notably, defendants/cross-complainants filed a second amended cross-complaint on December 31, 2025. The second amended cross-complaint, however, was filed without leave of court in violation of Code of Civil Procedure section 472. The court, on its own motion, strikes the second amended cross-complaint from the record pursuant to Code of Civil Procedure section 436, subdivision (b).

The court continues this matter to July 9, 2026, at 8:30 a.m. in Department 3. The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to discuss whether the parties stipulate to defendants/cross-complainants having leave to file a second amended cross-complaint in light of defendants/cross-complainants tacit admission, from their improperly filed second amended cross-complaint, their first amended cross-complaint was deficient.

The parties shall file a joint declaration on or before July 2, 2026, that outlines the parties meet and confer efforts, whether the parties stipulate to defendants/cross-complainants filing a second amended cross-complaint, and whether the proposed second amended cross-complaint remedies the deficiencies raised by plaintiff/cross-defendant in their reply papers. If the parties timely file a joint declaration that includes the required information and stipulates to defendants/cross-complainants filing a second amended cross-complaint, the hearing may be dropped from calendar.

If oral argument is requested, remote appearance is not authorized. The parties shall be prepared to answer questions from the court addressing the February 19 good faith meet and confer process in light of both a First and Second Amended Cross-Complaint on file with the court.

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